

25STCV30007 25STCV30007

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-08-17

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Case Number: 25STCV30007 Hearing Date: August 17, 2026 Dept: 11

Delos Santos (25STCV30007)

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Tentative Ruling Re: Motion to Compel Arbitration

Date: 8/17/26

Time: 11:00 am

Moving Party: Honeybee Foods

Corp. dba Jollibee ("Honeybee" or "Defendant")

Opposing Party: Maria Delos Santos ("Plaintiff")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

The hearing on Defendant's motion to compel arbitration is granted.

BACKGROUND

Plaintiff used to work for Honeybee. She alleges that Honeybee subjected her and other current and former employees to numerous wage-and-hour violations.

Here, Honeybee moves to compel Plaintiff's individual claims to arbitration.

DISCUSSION

Existence and Consent

"[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine whether the agreement exists and . . . whether it is enforceable." (Rosenthal v. Great Western Financial Securities Corp. (1996) 14 Cal.4th 394, 413.) "[T]he threshold question . . . is whether there is an agreement to arbitrate." (Cruise v. Kroger Co. (2015) 233 Cal.App.4th 390, 396, emphasis in original.)

Fundamentally, the burden process is a three-step process. "First, the moving party bears the burden of producing 'prima facie evidence of a written agreement to arbitrate the controversy.'" (Gamboa v. Northeast Community Clinic (2021) 72 Cal.App.5th 158, 165.) "The moving party 'can meet its initial burden by attaching to the [motion or] petition a copy of the arbitration agreement purporting to bear the [opposing party's] signature.'" (Ibid.) In the alternative, "the moving party can meet its burden by setting forth the agreement's provisions in the motion." (Ibid.)

"If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement." (Ibid.) "The opposing party can do this in several ways." (Ibid.) "For example, the opposing party may testify under oath or declare under penalty of perjury that the party never saw or does not remember seeing the agreement, or that the party never signed or does not remember signing the agreement."

(Ibid.)

"If the opposing party meets its burden of producing evidence, then in the third step, the moving party must establish with admissible evidence a valid arbitration agreement between the parties." (Ibid.) "The burden of proving the agreement by a preponderance of the evidence remains with the moving party." (Id. at 165-166.)

Defendant passes the first step. A copy of the Honeybee arbitration agreement is physically included with the moving papers.
(See Paderogo Decl., Ex. A; see also Gamboa, *supra*, 72 Cal.App.5th at 165.)

For the second and third steps, Plaintiff argues:

. . . The Agreement to Arbitrate Disputes identifies only a single entity—"Honeybee Foods Corporation dba Jollibee"—as "the Company," and it was not signed by Honeybee or by anyone on its behalf. The only indication of assent anywhere on the document is an electronic notation stating that it was e-signed by Plaintiff, together with a date; there is no signature of any Defendant. A contract that is signed by only one side, and that reflects no assent by the party seeking to enforce it, does not establish the mutual assent California law requires. [Banner Entertainment, Inc. v. Superior Court (1998) 62 Cal. App. 4th 348, 357–58 ("Banner Entertainment").]

The defect is compounded by the parties named in this action. Plaintiff has sued two corporate entities—Jollibee Foods Corporation and Honeybee Foods Corporation dba Jollibee Group North America—and an individual, Florence Cohen. Yet none of Jollibee Foods Corporation, Jollibee Group North America, or Florence Cohen is named anywhere in the Agreement, and none signed it. The Agreement contains no terms expressly extending its reach to the Company's parents, affiliates, or subsidiaries, and no language including the Company's owners, officers, directors, or agents within the definition of "the Company." A non-party to the Agreement cannot invoke it to compel arbitration, and no Defendant may bootstrap itself into an agreement it never entered. [Pagarigan v. Libby Care Center, Inc. (2002) 99 Cal. App. 4th 298, 301.]

(Opposition, p. 4.)

The first argument is unavailing. An arbitration agreement does not have to be signed by the defendant to be a viable contract. Instead, the rule is this: “When it is clear, both from a provision that the proposed

written contract would become operative only when signed by the parties as well as from any other evidence presented by the parties that both parties contemplated that acceptance of the contract’s terms would be signified by signing it, the failure to sign the agreement means no binding contract was created.” (Banner Entertainment, supra, 62 Cal.App.4th at 358, emphasis in original.) Plaintiff fails to cite such a “provision” or “other evidence[.]” (Ibid.; see also Opposition, pp. 3-5; cf. Paderogo Decl., Ex. A, p. 3 [supplying no signature line for either side].)

This brings the Court to Plaintiff’s second argument.

Defendant insists that Plaintiff sued Defendant under the wrong name – “Honeybee Foods Corporation dba Jollibee Group North America[.]” (Notice of Motion, p. 1.) Defendant represents that “Honeybee Foods Corporation dba Jollibee” – i.e., the “Company” in the Honeybee agreement – is the correct entity. (Ibid.) Honeybee Foods Corporation is named in the arbitration agreement and is the Defendant here. The dba is irrelevant to who the proper party is.

Federal Arbitration Act (“FAA”)

Defendant contends the FAA governs.
(See Motion, pp. 14-15.)

This issue is unopposed. (See Opposition, pp. 3-11 [failing to address the FAA].)

As a matter of guidance, the Court agrees with Defendant. The FAA applies if the plain language says it applies or if “the underlying contract facilitates interstate commercial transactions or directly or indirectly affects” interstate commerce.

(Knight, Cal. Practice Guide: Alternative Dispute Resolution (The Rutter Group 2026) ¶ 5:50.2, emphasis in original.) The first paragraph of the Honeybee agreement states that “Employee and the

Company have agreed to submit to binding arbitration pursuant to the Federal Arbitration Act (FAA) any dispute, controversy or claim arising out of or relating to Employees relationship with the Company and/or the termination thereof[.]” (Paderogo Decl., Ex. A, p. 1, *bolding in original, italicizing added.*)
The wording renders the FAA applicable.

Unconscionability and Enforcement

Unconscionability is a contract defense that can be utilized to “invalidate [an] arbitration agreement[.]” (Torrecillas v. Fitness International, LLC (2020) 52 Cal.App.5th 485, 492.)
Courts apply state law to test whether the agreement is unconscionable. (See, e.g., Lagatree v. Luce, Forward, Hamilton & Scripps (1999) 74 Cal.App.4th 1105, 1119.)

“[U]nconscionability has both a procedural and a substantive element, the former focusing on oppression or surprise due to unequal bargaining power, the latter on overly harsh or one-sided results.” (Armendariz v. Foundation Health Psychcare Services, Inc. (2000) 24 Cal.4th 83, 114, *internal quotation marks omitted.*) “The prevailing view is that [procedural and substantive unconscionability] must both be present in order for a court to exercise its discretion to refuse to enforce a contract or clause under the doctrine of unconscionability.” (Ibid.) “But they need not be present in the same degree.” (Ibid.) “Essentially a sliding scale is invoked which disregards the regularity of the procedural process of the contract formation, that creates the terms, in proportion to the greater harshness or unreasonableness of the substantive terms themselves.” (Ibid.) “In other words, the more substantively oppressive the contract term, the less evidence of procedural unconscionability is required to come to the conclusion that the term is unenforceable, and vice versa.” (Ibid.)

The burden belongs to the party opposing arbitration. (See Ajamian v. CantorCO2e, L.P. (2012) 203 Cal.App.4th 771, 795.)

Procedural element: Plaintiff contends

the Honeybee agreement constitutes a contract of adhesion. (See Opposition, p. 6.)

The Court disagrees for three reasons. One, “a predispute arbitration agreement is not invalid merely because it is imposed as a condition of employment.” (Lagatree, supra, 74 Cal.App.4th at 1122.) Two, the plain language undercuts Plaintiff’s argument:

Employee certifies that (s)he is aware that by entering into this Agreement, (s)he is waiving his/her right to have his/her Arbitrable Claims against the Company, if any, tried before a jury and that (s)he is waiving the right to appeal the arbitrators ruling on the merits other than to the extent necessary for judicial confirmation of the award under 9 U.S.C. § 9. Employee further certifies that (s)he has had the opportunity to consult with legal counsel prior to executing this Agreement.

(Paderogo Decl., Ex. A, p. 3, emphasis added.) Three, there is no statement under penalty of perjury stating that Plaintiff requested extra time to read the onboarding documents or assistance from an attorney or other consultant to explain the meaning of the arbitration terms or that Defendant denied the requests, assuming they were made.

Substantive element: Plaintiff maintains that (1) “the agreement provides no mechanism to compel third-party discovery” (Opposition, p. 7 [bolding, capitalizing, and underlining deleted), (2) the JAMS rules “permit only one deposition per side, contrary to Code of Civil Procedure section 1283.05” (ibid., bolding and underlining deleted; see also id. at p. 8), (3) “the agreement unlawfully compels arbitration of sexual harassment claims in violation of state and federal law and public policy” (id. at p. 8, bolding and capitalizing deleted; see also id. at p. 9), and (4) “the agreement lacks any semblance of mutuality[.]” (Id. at p. 9, bolding and capitalizing deleted; see also id. at p. 10.)

Point (1) is overstated. Plaintiff cites Aixtron, Inc. v. Veeco Instruments Inc. (2020) 52 Cal. App.5th 360 yet fails to mention that there is a split in the case

law. Under the FAA, “[a]rbitrators are authorized to subpoena nonparties to appear before them and to produce documents or other evidence.” (Knight, *supra*, at ¶ 5:387.11, emphasis in original.) Some decisions “restrict the subpoena power to hearings in the physical presence of the arbitrator[.]” (Id. at ¶ 5:387.11a [citing cases], emphasis in original.) Others “state that an arbitration panel might be able to subpoena a nonparty for prehearing discovery ‘under unusual circumstances’ and ‘upon a showing of special need or hardship.’” (Id. at ¶ 5:387.11b [citing case].) “A few cases hold that ‘implicit’ in the arbitrator’s power to subpoena relevant documents for production at a hearing ‘is the power to order the production of relevant documents for review by a party prior to the hearing.’” (Id. at ¶ 5:387.11c [citing case].) And at least “[o]ne case holds that arbitrators may compel nonparties to testify and produce evidence before the panel prior to any scheduled hearing on the merits.” (Id. at ¶ 5:387.11d [citing case].) The Rutter Guide advises that “[o]ne lesson to draw from these cases is that document discovery from third parties may be obtained prehearing if the arbitrators issue a subpoena to the third party to appear and produce documents before at least one of the arbitrators at a ‘hearing’ with the intention that this ‘hearing’ will be adjourned once the documents are secured to the merits hearing.” (Id. At ¶ 5:387.11e.) “This is often referred to as a ‘work-around’ the limitations of” FAA section 7. (Ibid.) “No court has disapproved this practice, so cases that state prehearing deposition discovery is not permitted by the FAA should not be read to prevent the ‘work-around.’” (Ibid.) In short, third-party discovery can be compelled.

Point (2) is incorrect. The JAMS rules allow “[e]ach Party [to] take at least one deposition of an opposing Party or an individual under the control of the opposing Party” and give the arbitrator power “to grant a request for additional depositions, based upon the reasonable need for the requested information, the availability of other discovery and the burdensomeness of the request on the opposing Parties and the witness.” (JAMS Employment Arbitration Rules & Procedures, rule 17(b), emphasis added.)

Point (3) fails. Plaintiff claims

the agreement is unconscionable since it fails to carve out sexual-harassment claims. (See Opposition, pp.

8-9.) Notably, though, the complaint

does not allege sexual harassment.

Moreover, the agreement broadly exempts “claims that may not be arbitrated as a matter of law[.]”

(Paderogo Decl., Ex. A, p. 1, emphasis added.) A non-arbitrable sexual-harassment claim does not become arbitrable simply by not being listed in the agreement’s non-exhaustive list of exempted claims. (See *ibid.*)

Point (4) also fails. Plaintiff asserts that the class waiver “strips Plaintiff of

valuable procedural mechanisms she would otherwise possess under California law

while imposing no comparable burden on Defendant.” (Opposition, p. 10.) However, because the FAA applies, the class waiver is enforceable. (See, e.g., *Knight*, *supra*, at ¶

5:49.4c [discussing *AT&T Mobility LLC v. Concepcion* (2011) 563 U.S.

333]; see also *Iskanian v. CLS Transportation Los Angeles, LLC* (2014) 59

Cal.4th 348, 359-360 [finding that the FAA preempts “a state’s

refusal to enforce [] a [class] waiver on grounds of public policy or

unconscionability”].)

Consequently, as a matter of guidance, the level of procedural

unconscionability is low, the level of substantive unconscionability is low,

the agreement can be enforced, and the class claims can be stricken.